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IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CWP-19047-2026

Date of Decision : 09.06.2026

Sandeep Singh

...Petitioner

Versus

Postgraduate Institute of Medical Education
And Research (PGIMER)

....Respondent

CORAM: HON'BLE MS. JUSTICE NEERJA K. KALSON

Present: Mr. Sandeep Singh, petitioner in-person.

NEERJA K. KALSON, J. (ORAL)

1. The present petition has been filed under Articles 226/227 of the Constitution of India read with the provisions of the Rights of Persons with Disabilities Act, 2016 seeking issuance of appropriate directions to the respondents to undertake a lawful and comprehensive medical assessment of the petitioner and to issue a disability certificate accurately reflecting all the disabilities allegedly suffered by him, including neurological impairment, locomotor disability, tinnitus, photophobia and hearing impairment.

2. The petitioner, appearing in person, submits that he has been participating in various recruitment processes against posts reserved for Persons with Benchmark Disabilities/Multiple Disabilities. According to him, the disability certificate presently issued by the competent Medical Board records only locomotor disability and does not take into account the other ailments and impairments from which he claims to be suffering. It is contended that the non-



consideration of the aforesaid conditions has adversely affected his candidature in various recruitment processes. The petitioner further submits that he would be satisfied, at this stage, if a direction is issued to the competent authority to re-examine his case, assess all the disabilities claimed by him in accordance with the applicable statutory provisions and guidelines, and thereafter take an appropriate decision regarding issuance of a disability certificate.

3. Having heard the petitioner and without expressing any opinion on the merits of the claim raised or the extent of disability allegedly suffered by him, this Court is of the considered view that the limited prayer made in the present petition deserves acceptance.

4. Accordingly, the respondent-competent authority/Medical Board is directed to examine the grievance raised by the petitioner and undertake an assessment of the disabilities claimed by him, including those reflected in the medical record relied upon by him, strictly in accordance with the provisions of the Rights of Persons with Disabilities Act, 2016 and the applicable guidelines governing issuance of disability certificates. Thereafter, a reasoned decision shall be taken regarding issuance/revision of the disability certificate, if so warranted in law.

5. The aforesaid exercise be completed as expeditiously as possible, preferably within a period of four weeks from the date of receipt of a certified copy of this order.

6. It is clarified that this Court has not expressed any opinion on the entitlement of the petitioner to any particular percentage or category of disability and the competent authority shall take an independent decision on the basis of the medical assessment and the relevant statutory framework.

7. The present petition stands disposed of in the above terms.

June 09, 2026

ps

(NEERJA K. KALSON)

JUDGE

Whether speaking/ reasoned

:

Yes/No

Whether reportable

:

Yes/No